

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: David Wall	Team: Squad #13	CCRB Case #: 202301583	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 02/23/2023 12:43 AM, Thursday, 02/23/2023 1:01 AM	Location of Incident: Northeast corner of Sherman Avenue and Sickles Street; 34th Precinct Stationhouse parking lot	18 Mo. SOL 8/23/2024	Precinct: 34		
Date/Time CV Reported Fri, 02/24/2023 7:13 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 02/24/2023 7:13 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Derek Rivera	03041	966808	034 PCT
2. PO Stephen Tomaszewski	04126	964806	034 PCT
3. PO Anthony Stabile	17519	961323	034 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Mirza Rashid	22542	970122	034 PCT
2. LT Cesar Gomez	00000	941024	NARCBMN

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Derek Rivera	Abuse: Police Officer Derek Rivera detained § 87(2)(b)	A . Substantiated
B . PO Stephen Tomaszewski	Abuse: Police Officer Stephen Tomaszewski detained § 87(2)(b)	B . Substantiated
C . PO Anthony Stabile	Abuse: Police Officer Anthony Stabile detained § 87(2)(b)	C . Substantiated
D . PO Derek Rivera	Abuse: Police Officer Derek Rivera searched the vehicle in which § 87(2)(b) was an occupant.	D . Substantiated
E . PO Stephen Tomaszewski	Abuse: Police Officer Stephen Tomaszewski searched the vehicle in which § 87(2)(b) was an occupant.	E . Substantiated
F . PO Anthony Stabile	Abuse: Police Officer Anthony Stabile searched the vehicle in which § 87(2)(b) was an occupant.	F . Substantiated

Case Summary

On February 24, 2023, § 87(2)(b) filed this complaint via the CCRB's website [01 Board Review].

On February 23, 2023, at approximately 12:43 a.m., Police Officers Anthony Stabile, Derek Rivera, and Stephen Tomaszewski of the 34th Precinct stopped § 87(2)(b) vehicle at Sherman Avenue and Sickles Street in Manhattan for excessively tinted windows. The officers removed § 87(2)(b) to the 34th Precinct stationhouse and searched his vehicle at the stationhouse (**Allegations A, B, and C: Abuse of Authority – Other (Detainment), substantiated; Allegations D, E, and F: Abuse of Authority – Vehicle Search, substantiated**).

§ 87(2)(b) was arrested for criminal possession of a controlled substance, a motor vehicle equipment violation (safety glass), and operation of an unregistered motor vehicle [02 Board Review].

The investigation received seven body worn camera (BWC) videos and one dashcam video related to this incident [03, 04 Board Review].

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Derek Rivera detained § 87(2)(b)
Allegation (B) Abuse of Authority: Police Officer Anthony Stabile detained § 87(2)(b)
Allegation (C) Abuse of Authority: Police Officer Stephen Tomaszewski detained § 87(2)(b)

It is undisputed and corroborated by PO Stabile's BWC footage [05 Board Review, runtime 01:04 – 01:40] that the officers pulled over § 87(2)(b) for his vehicle's tinted windows. § 87(2)(b) arrest report [02 Board Review] indicates that he was charged with having excessively tinted windows (*Vehicle and Traffic Law section 375, subsection 12*).

§ 87(2)(b) stated in his CCRB interview [06 Board Review] that he provided his license and insurance information to PO Stabile as instructed. § 87(2)(b) vehicle identification number (VIN) appeared on his insurance information. § 87(2)(b) searched for his vehicle's registration but ultimately could not find it. While § 87(2)(b) searched for his registration, PO Stabile asked § 87(2)(b) if the officers could search his vehicle, and § 87(2)(b) denied this request. PO Stabile instructed § 87(2)(b) to exit the vehicle because he could not provide his registration. § 87(2)(b) complied and was handcuffed by PO Tomaszewski, and PO Stabile told him he was going to be taken back to the stationhouse to be served a summons there. PO Stabile and PO Rivera drove § 87(2)(b) to the stationhouse, and PO Tomaszewski drove § 87(2)(b) vehicle to the stationhouse. § 87(2)(b) was placed in a holding cell for approximately one hour. PO Rivera told § 87(2)(b) that he was detained at the stationhouse because the officers did not have working phones or a computer in their vehicle and needed to go to the stationhouse to verify the information that he had provided to them.

PO Stabile's BWC video is generally consistent with § 87(2)(b) statement [05 Board Review]. At runtime 01:55, after receiving § 87(2)(b) license, PO Stabile goes to the rear of the vehicle and appears to run the license information through his department-issued cell phone. At runtime 08:07, PO Stabile says to PO Rivera, "It comes back." It is unclear what he is referring to when he says this. PO Rivera responds, "Can't have tints in New York." PO Stabile's response to this is unintelligible, but PO Rivera answers, "Write him a summons for the tints." At runtime 09:20, PO

Rivera places § 87(2)(b) in handcuffs. PO Stabile and PO Tomaszewski then place § 87(2)(b) into the police vehicle. At runtime 11:58 of PO Rivera's BWC video, PO Rivera enters § 87(2)(b) vehicle to drive it to the 34th Precinct stationhouse [07 Board Review]. § 87(2)(b) front windshield appears to be tinted. At runtime 12:46, PO Rivera raises the side windows in § 87(2)(b) vehicle. BWC from the scene does not capture any officer checking the door jamb of the driver's door on § 87(2)(b) vehicle at any point.

PO Rivera's statement is generally consistent with PO Stabile's BWC video [08 Board Review]. Because § 87(2)(b) did not have a vehicle registration on hand to show the officers, PO Rivera decided to remove § 87(2)(b) to the stationhouse to verify his vehicle's ownership. A vehicle's ownership can be identified via the vehicle identification number (VIN), which can be found on the vehicle registration, the dashboard where it meets the windshield, and the door jamb of the driver's door. § 87(2)(b) provided the officers his insurance information, which had the VIN on it, but PO Rivera did not use this to verify the vehicle's ownership on scene because he had been trained only to accept paper registration or the VIN as it appears on the vehicle to verify ownership. PO Rivera did not recall the name of this training or when he last received it. PO Stabile told PO Rivera that he attempted to verify the VIN through the vehicle's windshield but could not do so because the tint of the windshield was too dark to see through. Because § 87(2)(b) could not produce the vehicle registration, and because his windshield was tinted to the point where officers could not see into the vehicle, the officers could not verify that § 87(2)(b) was the vehicle's owner without entering the vehicle. PO Stabile asked § 87(2)(b) if the officers could "check" his vehicle, and § 87(2)(b) refused. PO Rivera determined that § 87(2)(b) needed to be removed to the stationhouse so the officers could search the vehicle for the VIN and verify that the vehicle was not stolen, and to serve § 87(2)(b) a summons for the tinted windows. PO Rivera discussed this decision with PO Stabile, and PO Stabile informed PO Rivera that the vehicle license plate matched the vehicle make and model, specifically saying, "It comes back." PO Rivera explained that § 87(2)(b) could not have tints and that the officers would still need to write § 87(2)(b) a summons, and for this reason should remove § 87(2)(b) to the stationhouse. PO Stabile then checked with Lieutenant Gomez, the officers' direct supervisor, prior to detaining § 87(2)(b). PO Rivera did not know what PO Stabile discussed with Lieutenant Gomez. PO Rivera did not speak to Lieutenant Gomez prior to detaining § 87(2)(b).

PO Stabile's statement [09 Board Review] is generally consistent with his own BWC footage and PO Rivera's statement with the following exceptions: PO Stabile could not specifically recall all the checks he performed on his department-issued cell phone to verify § 87(2)(b) identity and pedigree information, and that of his vehicle. PO Stabile ran a check to verify if the vehicle was reported as stolen, which yielded negative results. PO Stabile did not recall if he informed his fellow officers of this fact. PO Stabile showed PO Rivera and PO Tomaszewski pedigree information for § 87(2)(b) and his vehicle on his phone. PO Stabile did not recall what specific information he showed. PO Stabile did not recall if any of the other checks he performed for § 87(2)(b) or his vehicle raised suspicion that § 87(2)(b) vehicle might have been stolen. PO Stabile did not recall if he used the VIN or the license plate to look up the vehicle's pedigree. During their conversation, PO Rivera told PO Stabile that he wished to detain § 87(2)(b) so the officers could serve him a summons at the stationhouse for tinted windows. PO Stabile did not recall saying to PO Rivera, "It comes back," when discussing the decision to detain § 87(2)(b). PO Stabile was not aware of any other reason for detaining § 87(2)(b) at that time. PO Stabile did not suspect § 87(2)(b) of any other crimes or violations other than the observed VTL violations. PO Stabile ultimately agreed with the decision to remove § 87(2)(b) to the stationhouse, as he did not have paper summonses to use at the scene and their vehicle's onboard computer did not come equipped with a printer, so no digital summons receipt could be produced. PO Stabile did not know if PO Rivera or PO Tomaszewski had paper summonses on them. PO Rivera did not inform PO Stabile

that he believed § 87(2)(b) vehicle might be stolen and wanted to verify the vehicle's ownership. PO Stabile called Lieutenant Gomez to inform him that the officers were detaining § 87(2)(b). Lieutenant Gomez did not give any instructions or provide any guidance on this call.

PO Tomaszewski's statement [10 Board Review] is generally consistent with BWC video and PO Stabile and PO Rivera's statements with the following exceptions: PO Tomaszewski reviewed § 87(2)(b) insurance information via a photo on his cell phone but did not recall what information he found in that photo. Typically, a VIN can be found on insurance information, but PO Tomaszewski did not recall seeing the VIN. PO Tomaszewski did not recall showing § 87(2)(b) insurance information to PO Stabile or PO Rivera. PO Tomaszewski did not know why PO Stabile asked to search § 87(2)(b) vehicle. PO Tomaszewski did not run any information found on § 87(2)(b) insurance because PO Stabile and PO Rivera were the principal points of contact with § 87(2)(b). The vehicle ownership could have been verified at the scene with the information § 87(2)(b) provided. PO Tomaszewski did not know why PO Rivera did not verify the vehicle ownership at the scene. The officers' vehicle did not have a working printer from which to print summonses, but PO Tomaszewski did have paper summonses on him during this incident. At the time PO Rivera decided to remove § 87(2)(b) to the stationhouse, PO Tomaszewski believed it was to serve § 87(2)(b) a summons at the stationhouse.

Lieutenant Gomez's statement [11 Board Review] is generally consistent with PO Stabile's with the following exceptions: Lieutenant Gomez received a phone call from the Neighborhood Safety Team informing him that they were bringing an individual back to the stationhouse to be summonsed. Lieutenant Gomez did not know who the officers were detaining or why they detained this individual. Lieutenant Gomez did not instruct the officers to detain this individual. Lieutenant Gomez was not familiar with § 87(2)(b) and did not have any interaction with him during this incident.

§ 87(2)(b) provided the investigation with the vehicle insurance information he provided to the officers at the scene [12 Board Review]. The insurance information does list the VIN, #§ 87(2)(b).

§ 87(2)(b) also provided the investigation with a photo of the VIN as seen through the front windshield [13 Board Review]. The VIN as seen through the windshield reads "§ 87(2)(b)".

§ 87(2)(b) provided the investigation with a Pennsylvania vehicle registration for a 2017 Mercedes Benz with license plate #§ 87(2)(b) and VIN #§ 87(2)(b) [14 Board Review]. This registration was valid from January 19, 2022 to December 31, 2023.

According to *People v. Desmornes*, 82 N.Y.S.3d 691 [15 Board Review], there is a strong preference against custodial arrests in response to traffic violations where a reasonable summons can be issued as an alternative.

§ 87(2)(g)
§ 87(2)(b) provided multiple methods for verifying the ownership of the vehicle in the form of his identification and insurance information, which displayed the VIN. Additionally, a VIN can be found inside the windshield where it meets the dashboard, as evidenced by the photo provided by § 87(2)(b) and on the inside of the driver's door jamb. BWC video depicts PO Stabile making multiple checks of § 87(2)(b) information, and further, PO Stabile stated that he checked both § 87(2)(b) and the vehicle's pedigree information. PO Rivera stated that he did receive this

information from PO Stabile when PO Stabile told him, “It comes back,” meaning that the vehicle pedigree information found by PO Stabile matched the vehicle they had stopped. § 87(2)(g)

§ 87(2)(b) BWC video does not show any officer checking the windshield for a VIN, and none of the officers could recall if they checked the VIN that appeared on § 87(2)(b) insurance information. BWC video does not capture any officer checking the driver’s door jamb for the VIN. § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations A, B, and C** be substantiated.

Allegation (D) Abuse of Authority: Police Officer Derek Rivera searched § 87(2)(b) vehicle.

Allegation (E) Abuse of Authority: Police Officer Stephen Tomaszewski searched § 87(2)(b) vehicle.

Allegation (F) Abuse of Authority: Police Officer Anthony Stabile searched § 87(2)(b) vehicle.

It is undisputed and corroborated by PO Rivera’s BWC footage [**16 Board Review, runtime 01:03-04:50**] that PO Rivera, PO Tomaszewski, and PO Stabile searched § 87(2)(b) vehicle at the 34th Precinct stationhouse. It is also undisputed and corroborated by PO Stabile’s BWC footage [**05 Board Review, runtime 07:12-07:40**] that prior to § 87(2)(b) being removed to the stationhouse, § 87(2)(b) denied PO Stabile’s request to search his vehicle.

§ 87(2)(b) stated [**06 Board Review**] that PO Rivera visited him in the 34th Precinct holding cells and asked him about a medicine bottle and a bottle of pills found in his backpack. § 87(2)(b) backpack was in his vehicle when he was removed to the stationhouse. § 87(2)(b) did not give the officers permission to search his vehicle or his backpack. PO Rivera informed § 87(2)(b) that he would be charged with possession of the cough syrup and could not be released, and § 87(2)(b) was ultimately released from Central Bookings at approximately 11:30 p.m.

PO Tomaszewski’s BWC video [**17 Board Review**] at runtime 00:00 shows PO Rivera and PO Stabile speaking with Lieutenant Gomez. It is unclear what they discuss due to the lack of audio until runtime 01:00. At runtime 00:20, PO Tomaszewski, PO Stabile, and PO Rivera exit the stationhouse and walk to § 87(2)(b) vehicle. PO Rivera’s BWC video [**16 Board Review**] at runtime 00:55 shows him unlocking § 87(2)(b) vehicle and opening the front passenger door. PO Rivera first looks through the center console. While PO Rivera does this, PO Tomaszewski’s BWC video at runtime 01:19 shows PO Tomaszewski searching the vicinity of the driver’s seat. At runtime 01:27 of PO Rivera’s BWC video, PO Rivera opens § 87(2)(b) backpack on the front passenger seat, pulls out a medicine bottle, and says, “We got lean.” (“Lean” is a slang term for prescription promethazine-codeine cough syrup that is often consumed recreationally.) Neither he nor PO Tomaszewski has mentioned having found pills in the car. At runtime 01:50 of PO Rivera’s

BWC video, PO Stabile asks PO Rivera to “pop the trunk,” which PO Rivera does with the key fob. At runtime 01:42 of PO Stabile’s BWC video [18 Board Review], PO Stabile searches the trunk of

§ 87(2)(b) vehicle, finds several blue tote bags reading “Walmart,” searches through them, and finds multiple items of clothing.

According to § 87(2)(b) property vouchers prepared by Police Officer Mirza Rashid of the 34th Precinct, an unlabeled bottle of prescription liquid promethazine and two pink pills labeled 3E44 were vouchered as arrest evidence, and § 87(2)(b) was charged with criminal possession of a controlled substance, a felony, in regards [26 Board Review].

PO Rivera’s statement [08 Board Review] is consistent with BWC footage. PO Rivera stated that after the officers removed § 87(2)(b) and his vehicle to the stationhouse, they met with Lieutenant Gomez to debrief regarding § 87(2)(b) detention. PO Rivera did not recall specifically what was discussed with Lieutenant Gomez or receiving any instruction from Lieutenant Gomez to search § 87(2)(b) vehicle. PO Rivera did not recall if the officers conducted an inventory search of the vehicle. The purpose of searching § 87(2)(b) vehicle was to find the VIN or a paper registration for the vehicle. PO Rivera searched the vehicle in locations where a paper registration might be found, including the center console, § 87(2)(b) backpack, under the floor mats, the back passenger seat, and the glove compartment. While searching § 87(2)(b) backpack for the registration, PO Rivera found a bottle of promethazine-codeine with a scratched-off prescription label and unmarked bottles of marijuana. PO Rivera did not recall if PO Stabile or PO Tomaszewski searched the vehicle. Ultimately, the vehicle VIN was found, but PO Rivera could not recall who found it or how it was found. The VIN confirmed that § 87(2)(b) was the owner of the vehicle.

PO Tomaszewski’s statement [10 Board Review] is consistent with BWC footage and PO Rivera’s statement. PO Tomaszewski could not recall what was discussed in the meeting with Lieutenant Gomez or if Lieutenant Gomez instructed the officers to search § 87(2)(b) vehicle. The officers searched § 87(2)(b) vehicle to find his paper registration. PO Tomaszewski did not know if any officer searched for the VIN. PO Tomaszewski could not recall which parts of the vehicle he searched. PO Tomaszewski did not find § 87(2)(b) paper registration or VIN. After PO Rivera found narcotics in the vehicle, a more thorough search of the vehicle took place. PO Rivera ultimately found the VIN, but PO Tomaszewski did not know where he found it.

PO Stabile’s statement is consistent with BWC footage and PO Rivera and PO Tomaszewski’s statements with the following exceptions [09 Board Review]. PO Stabile did not recall what the officers discussed with Lieutenant Gomez. Lieutenant Gomez did not instruct the officers to search § 87(2)(b) vehicle. The officers decided to search § 87(2)(b) vehicle because PO Rivera believed the vehicle was stolen, but PO Stabile could not recall who made this decision. When PO Stabile exited the stationhouse to approach the vehicle, PO Rivera and PO Tomaszewski were already searching the vehicle. PO Stabile did not know what they were searching for. As PO Stabile approached the vehicle, PO Rivera told him that he found “lean” in the vehicle. After being informed about the narcotics in the vehicle, PO Stabile decided to search the vehicle himself. PO Stabile did not search the vehicle for the VIN or registration; he only began searching the vehicle after PO Rivera found narcotics, and he was searching for additional narcotics. The officers did not acquire a search warrant before searching the vehicle for additional narcotics. PO Stabile did not recall if a VIN or the paper registration for the vehicle were found.

Lieutenant Gomez [11 Board Review] did not recall the conversation with the officers when they returned to the stationhouse after detaining § 87(2)(b). Lieutenant Gomez did not recall instructing

the officers to search § 87(2)(b) vehicle or giving any guidance to the officers regarding a search of § 87(2)(b) vehicle.

According to *People v. Espinoza*, 174 A.D.3d 1062 [20 Board Review], when the driver of a vehicle is lawfully arrested, police may impound the car and conduct an inventory search where they act pursuant to reasonable police regulations relating to inventory procedures administered in good faith. To be valid, the inventory search must be both reasonable and conducted pursuant to established police agency procedures that are designed to meet the legitimate objectives of the search while limiting the discretion of the officer in the field. These specific objectives include protecting an owner's property while it is in custody of the police, insuring police against claims of lost, stolen, or vandalized property, and guarding police and others from dangerous instrumentalities that would otherwise go undetected.

According to *Patrol Guide Procedure 218-13: Inventory Searches of Automobiles and Other Property* [21 Board Review], whenever any property comes into the custody of the Department, an inventory search will be conducted as follows if the contents to be inventoried are in an automobile: Search the vehicle thoroughly, which should include any area that may contain valuables, including, but not limited to the glove compartment, console, map pockets in or on doors and rear or sides of seats, areas under seats and in and around the seat stuffing and springs, under the floor mats, under and behind the dashboard, inside the ashtrays, in the air vents where accessible, under the hood, and in the trunk.

§ 87(2)(g)

At the point PO Rivera searched § 87(2)(b) vehicle, § 87(2)(b) was detained at the stationhouse while awaiting summonses for VTL infractions. § 87(2)(g)

PO Tomaszewski concurred with PO Rivera that the officers searched § 87(2)(b) vehicle for § 87(2)(b) paper registration, and BWC video shows that PO Tomaszewski carried out his portion of the search concurrently with PO Rivera prior to PO Rivera finding the narcotics inside § 87(2)(b) backpack. § 87(2)(g)

§ 87(2)(g)

it is recommended that Allegations D and E be closed a **substantiated**.

According to *People v. Belton*, 55 N.Y.2d 49 [27 Board Review], a valid arrest for a crime authorizes a warrantless search, for a reasonable time and to a reasonable extent, of a vehicle and of a closed container visible in the passenger compartment of the vehicle which the arrested person is driving or in which he is a passenger when the circumstances give reason to believe that the vehicle or its visible contents may be related to the crime for which the arrest is being made (as possibly

containing contraband or as having been used in the commission of the crime) or there is reason to believe that a weapon may be discovered or access to means of escape thwarted.

According to *People v. Garcia*, 175 A.D.3d 1319 [22 Board Review], a small quantity of drugs and paraphernalia found on the defendant's person (in this case, cocaine and a cut straw), with no other drugs being found in the passenger compartment of the vehicle, does not, without more, provide probable cause to believe that additional drugs may be found in the trunk of the vehicle.

BWC video corroborates PO Stabile's statement that he did not begin searching the vehicle until after PO Rivera found narcotics in § 87(2)(b) backpack and said, "We got lean." § 87(2)(g)

§ 87(2)(g) it is recommended that **Allegation F** be closed as substantiated.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party [23 Board Review].
- PO Rivera has been a member of service for five years and has been a subject in nine CCRB complaints and 23 allegations, of which three were substantiated.
 - 202202457 involved a substantiated allegation of Abuse of Authority – Search of Premises. The Board recommended Command Discipline A and the NYPD imposed Command Discipline A.
 - 202202655 involved substantiated allegations of Abuse of Authority – Frisk and Abuse of Authority – Search of Person. The Board recommended Formalized Training and the NYPD did not impose discipline.
 - § 87(2)(g)
- PO Stabile has been a member of service for eight years and has been a subject in four CCRB complaints and seven allegations, of which one was substantiated.
 - 201700703 involved an allegation of Abuse of Authority – Frisk. This case was closed prior to the adoption of the NYPD Disciplinary Matrix, so no Board recommendation was issued. The NYPD imposed Formalized Training.
 - § 87(2)(g)
- PO Tomaszewski has been a member of service for six years and has been a subject in four CCRB complaints and nine allegations, of which none were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of April 23, 2024, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident [24 Board Review].

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 13

Investigator:	David Wall	Investigator David Wall	04/26/2024
	Signature	Print Title & Name	Date

Squad Leader:	<i>JP Lozada</i>	IM Jean-Paul Lozada	04/26/2024
	Signature	Print Title & Name	Date

Reviewer: _____

Signature _____ Print Title & Name _____ Date _____